



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 20, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14341
(SIXTH REVISION)

EXPIRATION DATE: 2027-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Baker Petrolite LLC
Sugar Land, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, mark, sale, and use of 4BW240 cylinders for the transportation of acrolein, stabilized by motor vehicle and cargo vessel. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.40(c), 173.226(a), and 173.301(f) in that welded DOT specification cylinders with pressure relief devices are not authorized for Division 6.1, Hazard Zone A materials, except as specified herein.
5. BASIS: This special permit is based on the application of Baker Petrolite LLC dated August 9, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023084432

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acrolein, stabilized	6.1	UN1092	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a DOT Specification 4BW240 welded steel cylinder having a capacity of approximately 53 gallons (370 pounds) of acrolein. Each cylinder is equipped with the pressure relief device system described in Baker Petrolite Corporation (BPC) application dated March 31, 2006, on file with the Office of Hazardous Materials Safety (OHMS).

b. OPERATIONAL CONTROLS:

(1) Leak Test: Prior to use under the terms of this special permit, each cylinder must be pneumatically pressurized with an inert or a Division 2.2 gas (e.g., nitrogen, helium) to a pressure greater than or equal to 30 psig. All welded joints, fitting assembly including pressure relief system, and other related devices (e.g., pressure gauge) must be leak tested. Baker Petrolite LLC will prepare a leak test report for each cylinder and make the test report available to OHMS upon request.

(2) Each cylinder must be shipped under a nitrogen blanket at a minimum pressure of 12 psig.

(3) Each cylinder may not contain more than 53 gallons (370 pounds) of acrolein. The maximum pressure in each cylinder during transportation may not exceed 30 psig at 65 °C (149 °F).

(4) Cylinders suspected of contamination are not authorized for shipment under the terms of this special permit.

(5) In addition to all applicable requirements of the HMR, the continued service of all cylinders is subject to the BPC Mechanical Integrity Program on file with OHMS.

(6) Transportation by motor vehicle is limited to private or contract carriage.

(7) The driver of the transport vehicle must be instructed that when the vehicle is in an accident involving spilled fuel or fire, the vehicle must be moved to a safe location unless moving the vehicle would directly endanger others.

(8) When transported by cargo vessel, each cylinder must be properly blocked and braced within a freight container

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. The cylinders described in this special permit are authorized only for normal transportation as an article of commerce (i.e., the movement of hazardous materials packages from consignor to consignee).

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. In addition to the required specification marking, each cylinder must be plainly and durably marked "DOT SP-14341" in accordance with § 178.35(f).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: M Toughiry/Casey Chambers